Rajendra & Others vs State Of U.P. on 17 May, 2016

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

A.F.R.

Court No. - 25

Case :- CRIMINAL APPEAL No. - 607 of 1995

Appellant :- Rajendra & Others

Respondent :- State Of U.P.

Counsel for Appellant :- H.K.Mishra,Alok Kapoor, B.K.Shukla, B.N.Shukla, Mohd. Saulat Wa

Counsel for Respondent :- Govt. Advocate

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Hon'ble Aditya Nath Mittal,J.

The challenge in this appeal is the judgment and order dated 23.11.1995, passed by the then Special Judge, Unnao in Session Trial No.80 of 1992, under Sections 498-A, 304-B I.P.C. and Section 3/4 of Dowry Prohibition Act, relating to Case Crime No.139 of 1991, Police Station-Sohramau, District-Unnao, by which the appellants have been convicted for the offence punishable under Sections 498-A, & 304-B I.P.C. and Section 4 of Dowry Prohibition Act.

The brief facts of the case are that on 10.09.1991 the mother of the deceased submitted an application before the Superintendent of Police, Unnao stating therein that her daughter was married with the appellant-Rajendra and 'Gauna' ceremony was also solemnized two years ago in which sufficient dowry was given but the appellant-Rajendra and his family members were not satisfied with the dowry and they castigated the deceased. When son of the complainant went for 'Vidai' of her sister then TV, Scooter, Fan and a sum of Rs.20,000/- were also demanded in dowry. The husband of her daughter, Rajendra, used to beat her daughter for dowry regarding which her daughter had told her. Just fifteen days before the incident her daughter had come on

'Rakshabandhan' alongwith son-in-law Rajendra. When on third day her son-in-law asked her daughter to go with him, her daughter said that she does not want to go to her matrimonial home because she is being tortured by the son-in-law and his family members. At that time, the son-in-law started beating to her daughter in her presence. The village Pradhan Sri Suresh Tiwari was called and on assurance of being provided TV, Fan, Scooter and Rs.20,000/- her son-in-law agreed to perform 'Vidai' of her daughter. She further stated that at about 7:00 p.m. in the evening one person came to her house and stated that her daughter is ill, upon which, she went to the matrimonial house of her daughter where she found that her daughter was dead. Upon this application, a case at Crime No.139 of 1991, under Sections 498-A, 304-B I.P.C. and Section 3/4 of Dowry Prohibition Act was registered. After investigation, the charge-sheet was filed against the present appellants. The appellants were charged for the offences which they had denied and claimed trial.

The prosecution has examined Ram Kumar Dixit as PW-1, Shiv Pal as PW-2, Smt. Medana (complainant) as PW-3, Suresh Chandra Tiwari as PW-4, Dr. R.C. Kushwaha as PW-5 and Jaydev Singh Verma (Investigating Officer) as PW-6. After recording the statement of the prosecution witnesses, the statements of the appellants were recorded under Section 313 Cr.P.C. and the strange part of the statement under Section 313 Cr.P.C. is that the appellants even denied the marriage and have shown their ignorance whether she was subjected to post-mortem or not. They have stated that they have been falsely implicated due to enmity and the deceased has committed suicide.

After the statement under Section 313 Cr.P.C., Ram Ashrey the village Pradhan has been examined as DW-1.

After appreciating the evidence on record, the learned trial court came to the conclusion that the appellants are guilty for the offence punishable under Sections 498-A & 304-B I.P.C. and Section 4 of Dowry Prohibition Act and accordingly sentenced them.

During course of pendency of this appeal, the appellant no.2-Chandrika (father-in-law) has died. Therefore, the appeal filed by Chandika stands abated.

Heard learned counsel for the appellants, learned Additional Government Advocate for the State and perused the record.

Learned counsel for the appellant has submitted that the deceased was a beautiful lady and she wanted to marry someone else and did not like the present appellant therefore she committed suicide. It has also been submitted that appellant-Rajendra himself took the deceased to the hospital and the witnesses of fact, except Smt. Medana PW-3, have not supported the prosecution version. It has also come in the evidence that the First Information Report was lodged after consultation with another son-in-law. There was no injury on the body of the deceased and the appellants have been wrongly convicted.

In the last, learned counsel for the appellants relying upon the case K. Prema S. Rao and another vs. Yadla Srinivasa Rao and others reported in (2003) 1 Supreme Court Cases 217 has submitted that the appellant-Rajendra has remained in Jail for about four years, therefore, a lenient view may be

taken. But as far as the case of Smt. Jamuna Devi is concerned, there is no sufficient evidence against her, therefore, she deserves to be acquitted.

The law relied upon by the learned counsel for the appellants relates to the sentence with regard to occurrence of offence punishable under Section 306 I.P.C., which does not contain any minimum sentence.

On the other hand, learned counsel for the prosecution has submitted that the main ingredients of offence punishable under Sections 498-A and 304-B I.P.C. and Section 3/4 of Dowry Prohibition Act are fully proved. The appellants have not explained that how she died due to burn injuries. Therefore, the presumption under Section 113-B of Indian Evidence Act shall be drawn against the appellants. In this regard, learned counsel for the prosecution has relied upon the case Nallam Veera Stayanandam and others vs. Public Prosecutor, High Court of A.P. reported in (2004) 10 Supreme Court Cases 769, in which the following has been held:-

> "We have heard learned counsel and also perused the records. It is true from the evidence led by the prosecution it has been able to establish that the appellants were demanding dowry which was a harassment to the deceased. It is also true that the death of the deceased occurred within 7 years of the marriage, therefore, a presumption under Section 113-B of the Evidence Act is available to the prosecution, therefore, it is for the defence in this case to discharge the onus and establish that the death of the deceased in all probability did not occur because of suicide but was an accidental death."

I have considered the rival submissions of learned counsel for the appellants as well as learned counsel for the prosecution and have gone through the evidence on record.

In the present case, it is not disputed that the deceased has died due to burn injuries. Although in the statement under Section 313 Cr.P.C., the appellants have denied the marriage but to none of the prosecution witnesses, any such suggestion has been given that the deceased was not married to Rajendra, who is the son of the appellant-Smt. Jamuna Devi. From the evidence on record, it is proved beyond any doubt that the deceased (Golana) was married to appellant-Rajendra and the death has occurred under unnatural circumstances within seven years of marriage.

For punishing any person for the offence punishable under Section 304-B I.P.C., it must be proved that the death has occurred otherwise than under normal circumstances within seven years of marriage and soon before her death, she was subjected to cruelty and harassment in connection with any demand for dowry. If the aforesaid ingredients are fulfilled, the husband or his relatives who subjected her to such cruelty or her husband can be presumed to be guilty for the offence punishable under Section 304-B I.P.C.

In the case of Satvir Singh and others Vs. State of Punjab and another reported in (2001) 8 SCC 633 the Hon'ble Apex Court has held as under:-

> "The essential components of Section 304-B are: (i) Death of a woman occurring otherwise than under normal circumstance, within 7 years of marriage, (ii) Soon before her death she should have been subjected to cruetly and harassment in connection with any demand for dowry. When the above ingredients are fulfilled, the husband or his relative, who subjected her to such cruelty or harassment, can be presumed to be guilty of offence Under Section 304-B. To be within the province of the first ingredient the provision stipulates that "where the death of a woman is caused by any burns or bodily injury or occurs otherwise than under normal circumstance". It may appear that the former limb which is described by the words "death caused by burns or bodily injury" is a redundancy because such death would also fall within the wider province of "death caused otherwise than under normal circumstances". The former limb was inserted for highlighting that by no means death caused by burns or bodily injury should be treated as falling outside the ambit of the offence".

The Hon'ble Apex Court in the case of Hira Lal and others vs. State (Govt.NCT) Delhi reported in (2003) 8 SCC 80 has held as under:-

> "A conjoint reading of Section 113-B of the Evidence Act and Section 304-B Indian Penal Code shows that there must be material to show that soon before her death the victim was subjected to cruelty or harassment. The prosecution has to rule out the possibility of a natural or accidental death so as to bring it within the purview of "death occurring otherwise than in normal circumstances". The expression "soon before" is very relevant where Section 113-B of the Evidence Act and Section 304-B Indian Penal Code are pressed into service. The prosecution is obliged to show that soon before the occurrence there was cruelty or harassment and only in that case presumption operates. Evidence in that regard has to be led by the prosecution".

The Hon'ble Apex Court, while proceeding further and interpreting the expression "soon before", opined thus:-

> "The determination of the period which can come within the term "soon before" is left to be determined by the courts, depending upon facts and circumstances of each case. Suffice, however, to indicate that the expression "soon before" would normally imply that the interval should not be much between the cruelty or harassment concerned and the death in question. There must be existence of a proximate and live link between the effect of cruelty based on dowry demand and the death concerned. If the alleged incident of cruelty is remote in time and has become stale enough not to disturb the mental equilibrium of the woman concerned, it would be of no consequence".

It is relevant to refer here the provision of Section 113-A and 113-B of the Evidence Act, which read as under:-

"113-A. Presumption as to abetment of suicide by a married woman,- When the question is whether the commission of suicide by a woman had been abetted by her husband or any relative of her husband and it is shown that she had committed suicide within a period of seven years from the date of her marriage and that her husband or such relative of her husband had subjected her to cruelty, the Court may presume, having regard to all the other circumstances of the case, that such suicide had been abetted by her husband or by such relative of her husband.

Section 113-B, which provides for presumption as to dowry death, was inserted with a view to fight against the plague of dowry death. The said provision is as follows:-

113-B Presumption as to dowry death.

When the question is whether a person has committed the dowry death of a woman and it is shown that soon before her death such woman has been subjected by such person to cruelty or harassment for, or in connection with, any demand for dowry, the Court shall presume that such person had caused the dowry death.

The Hon'ble Apex Court in a recent judgment rendered in Rajinder Singh vs. State of Punjab reported in (2015) 6 SCC 477 has interpreted the word "dowry" as defined in Section 2 of Dowry Prohibition Act, 1961 as follows:-

"A perusal of this Section shows that this definition can be broken into six distinct parts.

1) Dowry must first consist of any property or valuable security

- the word "any" is a word of width and would, therefore, include within it property and valuable security of any kind whatsoever.

2) Such property or security can be given or even agreed to be given. The actual giving of such property or security is, therefore, not necessary.

3) Such property or security can be given or agreed to be given either directly or indirectly.

4) Such giving or agreeing to give can again be not only by one party to a marriage to the other but also by the parents of either party or by any other person to either party to the marriage or to any other person. It will be noticed that this clause again widens the reach of the Act insofar as those guilty of committing the offence of giving or receiving dowry is concerned.

5) Such giving or agreeing to give can be at any time. It can be at, before, or at any time after the marriage. Thus, it can be many years after a marriage is solemnised.

> 6) Such giving or receiving must be in connection with the marriage of the parties. Obviously, the expression "in connection with" would in the context of the social evil sought to be tackled by the Dowry Prohibition Act mean "in relation with" or "relating to"."

In the present case, there is alleged demand of TV, Scooter, Fan and a sum of Rs.20,000/-. In view of the aforesaid interpretation of the word "dowry", these articles certainly come within the purview of dowry.

As far as ingredients of offence under Section 304-B I.P.C. are concerned, it is settled law that there are four ingredients and Hon'ble Apex Court in Rajinder Singh vs. State of Punjab (supra) has again reiterated the said settled principles of law, which is as follows:-

> "The ingredients of the offence under Section 304B have been stated and restated in many judgments. There are four such ingredients and they are said to be:
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> (a) death of a woman must have been caused by any burns or bodily injury or her death must have occurred otherwise than under normal circumstances;
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> (b) such death must have occurred within seven years of her marriage;
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> (c) soon before her death, she must have been subjected to cruelty or harassment by her husband or any relative of her husband; and
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> (d) such cruelty or harassment must be in connection with the demand for dowry.

This has been the law stated in the following judgments:

> Ashok Kumar vs. Stateof Haryana, (2010) 12 SCC 350 at pages 360-361; Bachni Devi & Anr. v. State of Haryana, (2011) 4 SCC 427 at 431, Pathan Hussain Basha v. State of A.P., (2012) 8 SCC 594 at 599, Kulwant Singh & Ors. v. State of Punjab, (2013) 4 SCC 177 at 184-185, Surinder Singh v. State of Haryana, (2014) 4 SCC 129 at 137, Raminder Singh v. State of Punjab, (2014) 12 SCC 582 at 583, Suresh Singh v. State of Haryana, (2013) 16 SCC 353 at 361, Sher Singh v. State of Haryana, 2015 1 SCALE 250 at 262."
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> The word "soon before" appearing in Section 113-B of Indian Evidence Act, 1872 also in Section 304-B I.P.C. have also been the subject matter of challenge in every case of dowry death. Hon'ble the Apex Court in Surinder Singh v. State of Haryana reported in (2014) 4 SCC 129, has again interpreted the said "soon before" as under:
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> "17. Thus, the words "soon before" appear in Section 113-B of the Evidence Act, 1872 and also in Section 304-B IPC. For the presumptions contemplated under these sections to spring into action, it is necessary to show that the cruelty or harassment

was caused soon before the death. The interpretation of the words "soon before" is, therefore, important. The question is how "soon before"? This would obviously depend on the facts and circumstances of each case. The cruelty or harassment differs from case to case. It relates to the mindset of people which varies from person to person. Cruelty can be mental or it can be physical. Mental cruelty is also of different shades. It can be verbal or emotional like insulting or ridiculing or humiliating a woman. It can be giving threats of injury to her or her near and dear ones. It can be depriving her of economic resources or essential amenities of life. It can be putting restraints on her movements. It can be not allowing her to talk to the outside world. The list is illustrative and not exhaustive. Physical cruelty could be actual beating or causing pain and harm to the person of a woman. Every such instance of cruelty and related harassment has a different impact on the mind of a woman. Some instances may be so grave as to have a lasting impact on a woman. Some instances which degrade her dignity may remain etched in her memory for a long time. Therefore, "soon before" is a relative term. In matters of emotions we cannot have fixed formulae. The time-lag may differ from case to case. This must be kept in mind while examining each case of dowry death.

18. In this connection we may refer to the judgment of this Court in Kans Raj v. State of Punjab, [(2000) 5 SCC 207 : 2000 SCC (Cri) 935] where this Court considered the term "soon before". The relevant observations are as under: (SCC pp. 222- 23, para 15) "15. ... 'Soon before' is a relative term which is required to be considered under specific circumstances of each case and no straitjacket formula can be laid down by fixing any time-limit. This expression is pregnant with the idea of proximity test. The term 'soon before' is not synonymous with the term 'immediately before' and is opposite of the expression 'soon after' as used and understood in Section 114, Illustration (a) of the Evidence Act. These words would imply that the interval should not be too long between the time of making the statement and the death. It contemplates the reasonable time which, as earlier noticed, has to be understood and determined under the peculiar circumstances of each case. In relation to dowry deaths, the circumstances showing the existence of cruelty or harassment to the deceased are not restricted to a particular instance but normally refer to a course of conduct. Such conduct may be spread over a period of time. If the cruelty or harassment or demand for dowry is shown to have persisted, it shall be deemed to be 'soon before death' if any other intervening circumstance showing the non-existence of such treatment is not brought on record, before such alleged treatment and the date of death. It does not, however, mean that such time can be stretched to any period. Proximate and live link between the effect of cruelty based on dowry demand and the consequential death is required to be proved by the prosecution. The demand of dowry, cruelty or harassment based upon such demand and the date of death should not be too remote in time which, under the circumstances, be treated as having become stale enough.

> Thus, there must be a nexus between the demand of dowry, cruelty or harassment, based upon such demand and the date of death. The test of proximity will have to be applied. But, it is not a rigid test. It depends on the facts and circumstances of each case and calls for a pragmatic and sensitive approach of the court within the confines of law."

Hon'ble the Apex Court in Sher Singh vs. State of Haryana reported in 2015 (1) SCALE 250, has further held as under:

> "We are aware that the word 'soon' finds place in Section 304-B; but we would prefer to interpret its use not in terms of days or months or years, but as necessarily indicating that the demand for dowry should not be stale or an aberration of the past, but should be the continuing cause for the death under Section 304-B or the suicide under Section 306 of the IPC. Once the presence of these concomitants are established or shown or proved by the prosecution, even by preponderance of possibility, the initial presumption of innocence is replaced by an assumption of guilt of the accused, thereupon transferring the heavy burden of proof upon him and requiring him to produce evidence dislodging his guilt, beyond reasonable doubt."

Hon'ble the Apex Court in Rajinder Singh vs. State of Punjab (supra) has distinguished the law laid down in Dinesh vs. State of Haryana reported in 2014 (5) SCALE 641, in the following terms:

> "The expression "soon before" is a relative term as held by this Court, which is required to be considered under the specific circumstances of each case and no straight jacket formula can be laid down by fixing any time of allotment. It can be said that the term "soon before" is synonyms with the term "immediately before". The determination of the period which can come within term "soon before" is left to be determined by courts depending upon the facts and circumstances of each case."

We hasten to add that this is not a correct reflection of the law. "Soon before" is not synonymous with "immediately before".

In view of the above settled position of law, the evidence against both the appellants is being reappreciated.

First of all I take the case of appellant no.3- Smt. Jamuna Devi, who is the mother-in-law of the deceased. The First Information Report is the first available basis for any prosecution. Undoubtedly, if there are any omission in the First Information Report, that makes no difference because the First Information Report cannot be treated as encyclopedia of all the facts. But at the same time if there are specific averments in the First Information Report, they have to be given their importance and they cannot be overlooked. Perusal of the First Information Report, which has been proved by Smt. Medana PW-3, it establishes that the main grievance was with son-in-law i.e. the appellant-Rajendra and there are flying allegations against the mother-in-law and father-in-law. In the First Information Report, it has been specifically mentioned that due to non-fulfillment of

demand of dowry, her son-in-law used to beat her daughter oftentimes. A specific instance has been given in the First Information Report, when her daughter just fifteen days before the incident had come to tie "Rakhi", and her son-in-law had also come with her and on third day of "Rakshabandhan" when her son-in-law asked her daughter for 'Vidai' then her daughter refused to go with him and complained about torture due to demand of dowry. At that time also her son-in-law in the presence of the complainant had beaten her daughter by kicks and fists and after pacifying the mother she was sent alongwith her son-in-law upon the assurance that when her son Dhani Ram will come back from Bombay, they will arrange TV, Scooter, Fan and Rs.20,000/-. In this First Information Report, there is no specific allegation of any demand of dowry or cruelty or torture in connection with demand of dowry by the father-in-law or the mother-in-law. The contents of the First Information Report are further supported by the statement of Shiv Pal PW-2, who although has not supported the prosecution case fully but has stated that the appellant-Rajendra used to beat the deceased, but does not know the reasons.

As per the accused persons themselves, the deceased was a beautiful and educated girl and in the evidence of prosecution witnesses, no other dispute has come in the light nor anything adverse has come in the cross-examination of the witnesses, which may prove that the said beating by the appellant-Rajendra was not with regard to demand of dowry but there were other reasons also. The statement of Ram Ashrey DW-1 is also relevant to the extent that after marriage of Rajendra, his mother and father were residing separately. The cummulative effect of these facts i.e. no specific allegation against the mother-in-law in the First Information Report, no specific statement of Shiv Pal PW-2 and the complainant Smt. Medana PW-3 in their statements regarding demand of dowry or cruelty or torture in connection with demand of dowry, is that the present appellant-Smt. Jamuna Devi had neither demanded any dowry nor had caused any cruelty or tortured the deceased soon before her death or at any other point of time. She also gets the benefit from the statement of Ram Ashrey DW-1, who has stated that after marriage of the son, the present appellant-Smt. Jamuna Devi and Chandrika started living separately. In these circumstances, the ingredients of offence punishable under Sections 498-A and 304-B I.P.C. as well as Section 4 of Dowry Prohibition Act are not proved against the appellant-Smt. Jamuna Devi and the prosecution has utterly failed to bring home the guilt of the present appellant-Smt. Jamuna Devi. The conclusions drawn by learned trial court with regard to Smt. Jamuna Devi are not in accordance with the evidence on record. Therefore in my opinion, the conviction of Smt. Jamuna Devi is liable to be set aside.

As far as the case of appellant-Rajendra who is the husband of the deceased is concerned, it is not disputed that the deceased has died due to burn injuries and the death has occurred otherwise than under normal circumstances. It is also not disputed that the death has occurred within seven years of marriage at the house of Rajendra. Although the appellant-Rajendra has denied the marriage in his statement under Section 313 Cr.P.C., but neither any suggestion in this regard has been given to the prosecution witnesses nor any other evidence has been adduced to show that the appellant-Rajendra is married to someone else except the deceased. Furthermore, Ram Ashrey DW-1, who is the witness of the appellant, has also stated that Rajendra was married with the deceased.

The denial of marriage in the statement under Section 313 Cr.P.C. shows the non-seriousness of this appellant towards his own wife. This non-seriousness is further enhance by the fact that the appellant in his statement under Section 313 Cr.P.C. has shown his ignorance about the fact that whether the deceased was subjected to post-mortem. It is very unfortunate that the appellant-Rajendra is so irresponsible towards his own wife.

As far as the evidence is concerned, it has come in the evidence that she was subjected to cruelty and harassment by her husband Rajendra and soon before her death she was subjected to cruelty and torture in connection with the demand of dowry. In the First Information Report itself, it has been mentioned that when about fifteen days prior to the incident the daughter of the complainant had come to tie "Rakhi" to her brother, the appellant-Rajendra has also come with her and on third day when he asked his wife to go with him, she refused and complained regarding the cruelty and torture by her husband due to non-fulfillment of demand of dowry. The complainant Smt. Medana has specifically mentioned in the First Information Report that upon this, her son-in-law became annoyed and in her presence she was beaten by kicks and fists and only on assurance that after returning of her son Dhani Ram from Bombay, she will manage for TV, Scooter, Fan and Rs.20,000/-, then only she was brought to her matrimonial home.

Smt. Medana PW-3 has reiterated this allegation in her statement on oath and she has further stated that she was not in a mood for 'Vidai' but upon intervention of village Pradhan of village of the appellant-Rajendra as well as herself, the 'Vidai' was done. The complainant has been cross-examined at length but apart from the minor contradictions regarding scribing of the First Information Report, she has supported her examination-in-chief in the cross-examination also. Her statement is in consonance with the First Information Report and appears to be very natural and genuine. I am of the opinion that there is no such material contradiction due to which her statement may not inspire confidence. There is a close proximity in the incident of physical cruelty just 10-11 days prior to the incident and that cruelty was with regard to demand of dowry and the death has occurred just 10-11 days thereafter. Under these circumstances, it cannot be said to be an accidental death. Therefore, it has also been proved that soon before her death, she was being subjected to cruelty. From the evidence on record, it is also proved that the said cruelty and harassment was in connection with demand of dowry because in the First Information Report itself it has been mentioned that upon assurance that after the return of her son Dhani Ram from Bombay, she will arrange for TV, Scooter, Fan and Rs.20,000/-. Therefore, in my opinion, all the ingredients of Section 304-B I.P.C. as well as Section 498-A I.P.C. and Section 4 of Dowry Prohibition Act stand proved.

Dr. R.C. Kushwaha PW-5 has proved the post-mortem of the deceased and has stated that she died due to burn injuries. As far as the defence of the appellants that she was a beautiful and educated lady and wanted to marry someone else is concerned, I do not find any substance in this defence for the reason that if she wanted to marry someone else she could have escaped from the house. Secondly, if she did not like her husband-Rajendra, then she could have easily left her matrimonial home. But just for this reason that she did not like her husband, it does not appears probable to commit suicide.

In my opinion, the prosecution has succeeded in proving the dowry death and in view of the presumption under Section 113-B of Indian Evidence Act, it was incumbent upon the appellants to have disproved this fact that it was not a dowry death but no such reliable evidence has been adduced by the appellants in their defence and for this purpose the statement of Ram Ashrey DW-1 does not inspire confidence.

Jay Dev Singh Verma PW-6 (Investigating Officer) has proved the investigation of the case and formal papers of the prosecution and in the cross-examination, no such fact has come into light that investigation was not done fairly or that it was under some pressure.

For the facts and circumstances mentioned above, after reappreciating the evidence as above, I am of the view that the prosecution has succeeded in proving the guilt of the appellant-Rajendra. Therefore, his conviction is liable to be upheld.

As discussed above, the prosecution has not succeeded in proving the guilt of Smt. Jamuna Devi (appellant no.3). Therefore, the conviction and sentence of Smt. Jamuna Devi are liable to be set aside.

As far as quantum of sentence is concerned, Section 304-B I.P.C. provides for minimum sentence of seven years rigorous imprisonment. It is not such a case which can be converted into a case of suicide under Section 306 I.P.C. The law relied upon by the learned counsel for the appellants in K. Prema S. Rao and another vs. Yadla Srinivasa Rao and others (supra) is not applicable to the present set of facts.

Learned trial court has awarded ten years rigorous imprisonment to the appellants for the offence punishable under Section 304-B I.P.C.. The incident took place in the year 1991, for which, about twenty five years have passed. The appellant-Rajendra was twenty four years of age at the time of statement recorded under Section 313 Cr.P.C., therefore, he must be about fifty years of age at present.

Considering the facts and circumstances of the case, the sentence of appellant-Rajendra for the offence punishable under Section 304-B I.P.C. is modified to seven years rigorous imprisonment. The sentence awarded for the offence punishable under Section 498-A I.P.C. and Section 4 of Dowry Prohibition Act does not require any interference. All the sentences shall run concurrently and the period already undergone shall be set off.

Accordingly, the appeal of appellant-Rajendra is dismissed alongwith above modification of sentence under Section 304-B I.P.C. The appellant-Rajendra is directed to surrender before the Chief Judicial Magistrate concerned within fifteen days from today to serve out his remaining sentence, failing which, the learned trial court shall be at liberty to take coercive steps against the appellant-Rajendra.

The appeal is allowed so far as it relates to appellant no.3-Smt. Jamuna Devi. The conviction and sentence of appellant no.3 (Smt. Jamuna Devi) is set aside and she is acquitted. She is directed to

comply with the provisions of Section 437-A Cr.P.C. and file her bail bonds before the Chief Judicial Magistrate concerned within fifteen days from today.

Office is directed to send a certified copy of this judgment alongwith the lower court record to the court concerned at an early date for compliance.

Order Date :- 17.5.2016 Suresh/